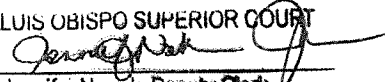


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FILED

SEP 12 2016

SAN LUIS OBISPO SUPERIOR COURT
BY: 
Jennifer Novick, Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN LUIS OBISPO

WARREN VAN NESS, Individually and as
Successor in Interest to Deanna Van Ness,
Deceased; NATHANIEL VAN NESS, an
Individual; and DENNA VAN NESS, an
Individual,

Plaintiffs,

vs.

PORT SAN LUIS HARBOR DISTRICT;
RRM DESIGN GROUP, a California
Corporation; JEFF FERBER, an Individual;
MIKE SHERROD, an Individual; JACOBS
ENGINEERING GROUP INC., a California
corporation; HAN-PADRON
ASSOCIATES, LLP, a California limited
liability partnership; CHEVRON USA
INCORPORATED, a California corporation
dba RRM DESIGN GROUP COMPANY
OF CALIFORNIA, a California corporation
dba UNOCAL; (ROE 1); and DOES 1-60,
inclusive,

Defendants.

CASE NO. CV13-0369

**RULING AND ORDER DENYING IN
PART, AND GRANTING IN PART,
DEFENDANTS' MOTIONS FOR
SUMMARY ADJUDICATION**

Assigned Judge: Hon. Charles S. Crandall

I. INTRODUCTION AND SUMMARY

While pushing Deanna Van Ness' ("Deanna") wheelchair down a concrete ramp at Avila Beach, Plaintiff Warren Van Ness alleges in his Second Amended Complaint ("Second Complaint" or "SAC") that the right front wheel of the wheelchair went over an unexpected edge, plunging his wife face first out of the wheelchair onto the concrete walkway. Bleeding profusely, Deanna was rushed to the hospital with facial fractures and injuries to her nose, mouth, and teeth. In a seriously weakened state, Deanna died approximately seven months after the accident.

Van Ness claims that the ramp, landing, steps, and surrounding areas maintained by Defendant Port San Luis Harbor District ("Port San Luis") were non-compliant with the Americans with Disabilities Act of 1990 ("ADA"), and that the ramp was poorly designed, lacking edge protection and handrails, all of which contributed to Deanna's death.

Port San Luis brings a multifaceted motion for summary adjudication of issues, contending that many material allegations in the Second Complaint are without factual support and that Plaintiff's legal claims are meritless. It urges, among other things, that: Plaintiff lacks standing, is not entitled to loss of consortium, cannot prove the requisite mens rea, and is not entitled to damages under state disability statutes; and, Port San Luis complied with the ADA, is entitled to trial and design immunity, and has no legal responsibility for work performed by its independent contractors.

Defendants Jacobs Engineering, RRM Design, and Union Oil Company, who were involved in the design and construction of the walkway many years ago, contend that claims based upon the ADA can be brought only against entities that own, lease, or operate places of public accommodation. Since none of them now owns, leases, or operates the Avila Beach walkway, they assert judgment should be entered in their favor.

The motions brought by Jacobs Engineering, RRM Design, and Union Oil Company appropriately focus upon an issue of law and limited disputed facts. The motion brought by Port San Luis does not.

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1 In *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 289-90, the Court of
2 Appeal made note of the rising summary judgment problem as follows:

3 The deficiencies in summary judgment papers can appear in a variety of
4 places, and the approaches taken by the courts to address the deficiencies can
5 vary as well, limited only by the inspiration or creativity of the particular law
6 and motion judge-and, of course, due process. There is no universal solution,
7 no panacea, and we do not even attempt to offer suggestions. We write here
8 only to confirm the existence of the inherent power, to remind trial courts of
9 it, and to encourage them to use it when appropriate.

10 Since 2010, the approach embraced by Department 9 has been set forth on page 2,
11 paragraph IV. D., of its Standing Case Management Order:

12 **The parties are strongly encouraged to "preview" complicated law and**
13 **motion matters with the Court at CMCs. This procedure may obviate or**
14 **narrow the scope of summary judgment motions and other matters that**
15 **depend heavily on controverted facts, and it will save time and effort of**
16 **all involved.** (Emphasis added.)

17 As far back as January 2016, the Court has recognized the existence of a great deal of
18 acrimony between counsel, which has exacerbated the free exchange of ideas and impeded
19 communications. Finger-pointing in both directions has been widespread. Yet it is
20 unfortunate that counsel for Port San Luis did not follow the strong encouragement in the
21 Standing Case Management Order and preview these motions in detail with the Court and
22 opposing counsel before filing them. Had counsel done so, many of the procedural issues
23 plaguing this motion might have been ameliorated, and adjudication of the important issues
24 could have been simplified.

25 As it stands, there are significant problems in the presentation of this motion.
26 Importantly, Port San Luis' separate statement does not comply with Cal. Rule of Court
27 §3.1350(b) because the notice of motion does not identify the issues for adjudication.
28 Rather, the **ten** issues for adjudication are listed at the beginning of the separate statement of
undisputed material facts. The separate statement then identifies **31** UMFs that apply to **each**
of the ten issues presented for summary adjudication. The Court was left on its own to

1 figure out which of the 31 UMFs matched up with which of the ten issues presented for
2 adjudication.

3 As the Court will discuss more fully below, the manner of presentation of the motion
4 by Port San Luis virtually guarantees its denial since any undisputed material fact that is
5 inadequately supported by the evidence, or effectively disputed by Plaintiff, pertains to the
6 **entire** motion, and warrants denial of the **entire motion**. Rather than summarily denying the
7 motion, however, the Court will go through the issues presented in some detail to illustrate
8 the pitfalls of a shotgun approach, as well as to stimulate a more thoughtful use of the
9 summary judgment procedure.

10 The motions brought by Jacobs, RRM, and Union Oil, which discuss the relationships
11 among the federal Americans with Disability Act, the California Unruh Civil Rights Act, and
12 the California Disabled Persons Act, have legal merit. Notwithstanding, these motions do not
13 entirely dispose of two of the three causes of action. There are parallel claims of
14 discrimination based upon violations of the State Building Code, which are independently
15 actionable, i.e., regardless of the outcome under the ADA. While a higher standard of proof
16 may impact Plaintiff's case at trial, the State Building Code violations are not raised in this
17 motion and therefore cannot be adjudicated summarily.

18 19 **II. DISCUSSION**

20 **A. Legal Standards**

21 The moving party has an initial burden to make a prima facie showing that there are
22 no triable issues of material fact and that it is entitled to a judgment as a matter of law.
23 (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) With a prima facie showing,
24 the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue
25 of material fact exists. (CCP §437(p)(2).) A defendant moving for summary judgment must
26 "show" that there is a complete defense to a cause of action or that one or more elements of
27 the cause of action cannot be established. (CCP §437c(p)(2).)

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1 Reflecting the “cautious” judicial attitude about granting summary judgment, any
2 evidentiary doubts or ambiguities must be resolved in the opposing party’s favor. (*Johnson v.*
3 *American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) Similarly, the declarations and evidence
4 offered in opposition to the motion must be liberally construed, while the moving party's
5 evidence must be construed strictly, in determining the existence of a triable issue of fact.
6 (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 2; *Binder v. Aetna Life Ins. Co.*
7 (1999) 75 Cal.App.4th 832, 839; *Johnson*, 43 Cal.4th at 56, 64.)

8
9 **B. The Motion by Port San Luis**

10 **1. The Undisputed Material Facts**

11 There are a number of UMFs that appear material to the various defenses asserted by
12 Port San Luis. Many of these UMFs are not clearly supported, thereby warranting denial of
13 the motion in its entirety.

14 UMF 2 states that the designs for the Front Street Enhancement Project, which
15 included the universal access pathway, were approved prior to construction by the County of
16 San Luis Obispo. In support of UMF 2, Defendant attaches the County Board of
17 Supervisor’s Resolution No. 2000-442, attached as Exhibit B to the evidence package, and
18 the Notice of Final County Action, attached as Exhibit C. Plaintiff disputes UMF 2 with the
19 assertion that the evidence only establishes approval for conceptual plans, not the actual
20 plans related to the improvements referred to as the universal access pathway. The evidence
21 in support of UMF 2 does **not** clearly support the stated fact that the designs for the project
22 were approved by the County.

23 UMF 3 states that the County had discretionary authority to approve the plan or
24 design for the project. Port San Luis cites ¶4.3 of the settlement agreement and judgment in
25 case number CV07-9728. Paragraph 4.3 of that document states that the parties recognize
26 that the project requires discretionary and ministerial approvals by the County, and that the
27 decisions of the County are not constrained by the settlement agreement. Further, Union Oil
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1 Company agreed to submit complete applications and fees for all County approvals necessary
2 to perform the remediation project.

3 The paragraph goes on to describe the County's agreement that staff of the Planning
4 and Building Department would present the draft Development Plan to the Planning
5 Commission with a recommendation for approval. A paragraph in a settlement agreement
6 does not clearly establish that the County has authority to approve a particular plan or design.
7 To ascertain which board or officer has discretionary approval authority under Government
8 Code §830.6, the Court must look to both the law fixing the internal distribution of the public
9 entity's powers and to applicable administrative arrangements. (See Cal Govt. Tort Liability
10 Practice (CEB 4th Ed.) §12:70.) The cited paragraph from a settlement agreement does **not**
11 establish the identity of the agency that has discretionary approval over the project.

12 UMF 4 asserts that detailed plans of the Front Street Enhancement Project were
13 drawn by RRM Design, and were approved by the engineers in the SLO Planning
14 Department. UMF 4 cites Exhibits A, B, and C to support the fact. Plaintiff asserts that
15 evidence supporting UMF 4 has not been proffered.

16 The Court is **unable to locate** detailed plans of any kind in the exhibits presented or
17 the approvals of such plans by engineers in Exhibits A, B, and C.

18 UMF 7 asserts that the pathway was designed and used for public recreational use in
19 accessing Avila Beach. UMF 7 cites page 2 of Exhibit F in support of that fact. Exhibit F
20 does not include a page 2. A land use map adopted February 2014 is attached to Exhibit F.
21 The map's legend reflects a green area identified as "recreation". The map does **not** depict
22 any pathways.

23 UMF 8 asserts that the West Beach Access Ramp was designed as a Universal Access
24 Pathway that met or exceeded the requirements of the ADA, and included all pedestrians,
25 whether disabled or not.

26 In order to support UMF 8 (as well as other UMFs set forth below), Port San Luis
27 heavily relies on the deposition testimony of Jeff Ferber, a landscape architect and principal
28 in RRM Design Group, who was the project manager for the Front Street Enhancement

1 project. Ferber states that the universal access ramp is one that meets or exceeds the
2 requirements of the ADA, and is designed to access the beach and shower area. There was a
3 desire to make the access universal for all users. With respect to compliance with ADA
4 requirements, Ferber states that he looked at the definition of a ramp and this portion of the
5 walkway is broader, gentler, and less severe than a ramp. He further states that the grade is
6 less than five percent. Finally, he states that it was RRM's intention to design the ramp for
7 safe use by wheelchairs, and that RRM reviewed the plans to establish that the west beach
8 access portion of the plans was compliant with the ADA.

9 Ferber is a principal of RRM, a named defendant. When a critical issue is the party's
10 credibility, mental state, or intention, the burden on the moving party is particularly difficult.
11 As the Court of Appeal stated in *Nazir*, 178 Cal.App.4th at 285-86, cases that present issues
12 of intent and motive are not determinable on paper and are "rarely appropriate" for
13 disposition on summary judgment. (See also Weil & Brown, Cal. Practice Guide: *Civ. Proc.*
14 *Before Trial* (The Rutter Group 2015) §10:202, p. 10-79 ["court has discretion to deny
15 summary judgment so that the moving party's credibility can be determined at trial."]; and §
16 10:321, p. 10-134 ["the court has discretion to deny summary judgment although no 'triable
17 issue' of fact can be shown [because] [t]he opposing party cannot reasonably be expected to
18 controvert declarations as to facts exclusively within the moving party's knowledge or
19 control. Since the case turns largely on the credibility of the moving party's testimony, the
20 Court should have power to send the matter to trial."])

21 The test of an expert's competency to provide opinion testimony is whether the
22 witness has sufficient skill or experience in the particular field so that his testimony would be
23 likely to assist the jury in the search for the truth. (*Salasguevara v. Wyeth Laboratories, Inc.*
24 (1990) 222 Cal.App.3d 379, 385.) A declaration should have a sufficient factual basis and an
25 explanation or reasoning behind the opinion. (See *Andrews v. Foster Wheeler LLC* (2006)
26 138 Cal.App.4th 96, 113.)

27 Ferber's credibility will be for the jury to assess, and his testimony does **not** establish
28 his expertise in ADA compliance, or how the ramp meets or exceeds ADA compliance. For

1 example, the Second Amended Complaint specifically references an unexpected and
2 invisible step that cuts into the wheelchair's path of travel. (SAC ¶20.) While Ferber
3 mentions that the slope is gentle, with less than a 5% grade, his opinion does not address the
4 arguments that there was an unmarked vertical level change or step that interrupted the path
5 of travel, or the arguments concerning a cross slope that directed the front wheels toward the
6 hazard. Ferber's deposition testimony does **not** establish that the area in question meets
7 ADA requirements.¹

8 UMF 9 asserts that there is at least one other ADA compliant ramp for access to the
9 beach facilities. Ferber's deposition testimony identifies an ADA accessible ramp on a
10 conceptual drawing identified as Exhibit 62. The Court is **unable to locate** Exhibit 62.
11 Moreover, there is no evidence presented that provides a basis for his opinion that the
12 alternate ramp, whatever its location, is ADA compliant and provides an alternate route.

13 UMF 22 asserts that at the time of the fall, Deanna had reached her intended location.
14 This is an effort to establish that there is no impediment to her access. The citation to the
15 deposition testimony in support of UMF 22 reflects that at that time, Plaintiff and Deanna
16 Van Ness reached the lower side of the beach access ramp and no one told Plaintiff or
17 Deanna to watch out for the step. The cited evidence does **not** support UMF 22 as stated.

18 UMF 27 asserts that Plaintiff and Deanna had used a specified disabled access ramp
19 to access the beach. The testimony vaguely describes a ramp or a dirt slope that was utilized
20 to get to the beach. The cited evidence does **not** describe a specified disabled access ramp.

21 **2. Plaintiff's Claims Under the Disability Statutes**

22 Port San Luis raises various arguments asserting that Plaintiff is unable to establish
23 violations of the ADA, DPA, or Unruh Act. The Court will address these issues seriatim.
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27 ¹ It must be plainly stated that Plaintiff could have done a better job of opposing the motion. As but one
28 example, the letter proffered by Plaintiff's expert, which expresses the opinion that the walkway does not
comply with ADA requirements, is not signed under penalty of perjury and does not constitute admissible
evidence.

1 Port San Luis asserts that Plaintiff lacks standing to assert ADA claims because he is
2 not entitled to injunctive relief and there is no evidence or allegation of intentional
3 discrimination that would give rise to monetary damages under the ADA.

4 In *Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661, the California Supreme Court
5 held that a plaintiff who relies on Section 51(f) of the Unruh Civil Rights Act can obtain
6 damages for a violation of the ADA without proof of intentional discrimination. (*Munson*,
7 46 Cal.4th at 670.) Plaintiff is able to seek statutory damages for ADA violations without
8 proof of intentional discrimination.

9 Apparently relying on UMF 9 and *Urhausen v. Longs Drug Stores California, Inc.*
10 (2007) 155 Cal.App.4th 254, Port San Luis argues that Plaintiff cannot establish that Deanna
11 was denied equal access to her destination because there were other ADA-compliant means
12 of access.

13 *Urhausen* addressed plaintiff's cause of action for denial of "full and equal access"
14 guaranteed by the California Disabled Persons Act ("DPA"). Under the DPA, "full and
15 equal access' is defined by section 54.1 to mean access that complies with the regulations
16 developed under the federal Americans with Disabilities Act of 1990 (42 U.S.C. §§12111–
17 12117), or under state statutes, if the latter impose a higher standard. (§54.1, subd. (a)(3).)"
18 (*Urhausen*, 155 Cal.App.4th at 254, 261.)

19 Although the plaintiff in *Urhausen* failed to utilize ADA-compliant access that was
20 available, the court stated a claim could have been actionable had the injury occurred while
21 using the disabled access aisle. (*Urhausen*, 155 Cal.App.4th at 254, 264–65.)

22 Port San Luis contends that the pathway utilized by Plaintiff was a universal access
23 pathway that complied with ADA requirements. (See UMF 8) The reference to at least one
24 other ADA-compliant ramp for access to the beach does not establish that it was an alternate
25 means of access, or that it was ADA compliant. (See UMF 9) The conceptual drawing
26 referred to in the testimony is not supplied. Ferber's opinion testimony lacks foundation.
27 UMF 27 does not describe use of a specific handicap ramp. Summary judgment is not
28 warranted on this basis.

1 **3. Dangerous Condition of Public Property.**

2 **a) Trail Immunity under Section 831.4**

3 Under section 831.4, a public entity is not liable for injuries caused by a condition of:

- 4 (a) Any unpaved road which provides access to fishing, hunting, camping,
5 hiking, riding, including animal and all types of vehicular riding, water
6 sports, recreational or scenic areas and which is not a (1) city street or
7 highway or (2) county, state or federal highway or (3) public street or
8 highway of a joint highway district, boulevard district, bridge and highway
9 district or similar district formed for the improvement or building of
10 public streets or highways.²
11 (b) Any trail used for the above purposes.
12 (c)

13 Unlike subdivision (a) which covers only unpaved roads, immunity under subdivision
14 (b) applies to both paved and unpaved trails. (*Amberger-Warren v. City of Piedmont* (2006)
15 143 Cal.App.4th 1074, 1078.) “Whether a particular road or trail comes under this immunity
16 is ordinarily a question of fact. [Citations.]” (*Treweek v. City of Napa* (2000) 85 Cal.App.4th
17 221, 229.) This immunity “depends on a number of considerations, including [1] accepted
18 definitions of the property [citations], [2] the purpose for which the property is designed and
19 used, and [3] the purpose of the immunity statute [citation].” (*Amberger-Warren, supra*, 2
20 Cal.App.4th at 1079.) In *Amberger-Warren*, the court concluded that a paved pathway
21 through a park qualified as a trail. (143 Cal.App.4th at 1079–80.)

22 UMF 7 asserts that the improvements, including the Universal Access Parkway, were
23 designed for public recreational use in accessing Avila Beach. The evidence supporting
24 UMF 7 is an unauthenticated map dated 2014, which depicts the Avila Beach area showing
25 an area in green where the map legend identifies a recreational area. It does not depict the
26 pathway in question.

27 As described earlier in this ruling, the evidence cited is insufficient to support UMF 7.

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² “Street” is defined as “a way or place of whatever nature, publicly maintained and open to the use of the public for purposes of vehicular travel. Street includes highway.” (Veh. Code, §590.) “Highway” is similarly defined and includes “street.” (Veh. Code, §360.)

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1 matter should have gone to the jury on the issue of the owner's liability for contractor's poor
2 workmanship decades earlier:

3 This evidence would have supported a jury finding that the sink had been
4 negligently installed. Therefore, if the school district was liable for the
5 contractor's acts, it was error not to so instruct the jury. The general rule is that
6 one is not liable for the acts of an independent contractor; however, this rule is
7 subject to numerous exceptions. (See generally, Rest.2d Torts (1965) §§ 409-
8 429.) One of these exceptions is that the possessor of land is answerable for
9 the negligent failure of an independent contractor to construct or maintain
10 buildings and structures in reasonably safe condition. (*Maloney v. Rath* (1968)
11 69 Cal.2d 442, 447 [65 Cal.Rptr. 386]; *Knell v. Morris* (1952) 39 Cal.2d 450
12 [247 P.2d 352]; *Brown v. George Pepperdine Foundation* (1943) 23 Cal.2d
13 256 [143 P.2d 929]; Rest.2d Torts (1965) §422.) The rationale behind this and
14 similar exceptions is explained in the Restatement: "[The exceptions] arise in
15 situations in which, for reasons of policy, the employer is not permitted to
16 shift the responsibility for the proper conduct of the work to the contractor.
17 The liability imposed is closely analogous to that of a master for the
18 negligence of his servant.

14 "The statement commonly made in such cases is that the employer is under a
15 duty which he is not free to delegate to the contractor. Such a 'nondelegable
16 duty' requires the person upon whom it is imposed to answer for it that care is
17 exercised by anyone, even though he be an independent contractor, to whom
18 the performance of the duty is entrusted." (2 Rest.2d Torts (1965) p. 394.)
19 This liability of the landowner extends to negligent installation of fixtures
20 which are permanently affixed to and an integral part of the building. (*Knell v.*
21 *Morris, supra*, 39 Cal.2d 450, 456-457.)

20 The jury could have found that the sink was a fixture; therefore it was error
21 not to give the requested instruction on the liability of the school district for
22 negligent installation by the independent contractor. (*O'Gan v. King City*
23 *Joint Union High School Dist.* (1970) 3 Cal.App.3d 641, 645-46.)³

25 ³ A possessor of land who entrusts to an independent contractor, construction, repair, or other work on the
26 land, or on a building or other structure upon it, is subject to the same liability as though he had retained the
27 work in his own hands to others on or outside of the land for physical harm caused to them by the unsafe
28 condition of the structure:

- (a) while the possessor has retained possession of the land during the progress of the work, or
- (b) after he has resumed possession of the land upon its completion. Restatement (Second) of Torts §422 (1965).

1 The liability of Port San Luis does not necessarily depend upon the tort occurring
2 during construction. Summary judgment is not warranted on this basis.

3 **5. Plaintiff's Claims for Loss of Consortium.**

4 A "loss of consortium" claim and a "survivor's action" are considered analytically
5 dependent upon a viable cause of action for wrongful death based on a dangerous condition
6 of public property. Because the trial court concluded that there was no dangerous condition,
7 those causes of action were summarily disposed of. (*Salas v. California Dept. of Transp.*
8 (2011) 198 Cal.App.4th 1058, 1067.)

9 In *Shelton v. Superior Court* (1976) 56 Cal.App.3d 66, the court determined that an
10 amendment to the complaint asserting a loss of consortium claim was untimely. However,
11 because the State of California was the real-party-in-interest, the court noted that loss of
12 consortium claims were viable.

13 The motion does not establish, as a matter of law, that Port San Luis is immune from
14 liability. Therefore, Plaintiff is not precluded from bringing an "analytically dependent" loss
15 of consortium cause of action.

16 **6. Plaintiff's Claims with Respect to the Port's Failure to Discharge a**
17 **Mandatory Duty**

18 Port San Luis asserts that Plaintiff is unable to establish that Deanna was harmed
19 because of a violation of the ADA, DPA, the Unruh Act or any other statute that imposes a
20 mandatory duty upon the Port. As a result, Port San Luis contends that the cause of action
21 for failure to discharge a mandatory duty must fail. However, as discussed above, Plaintiff's
22 claims of violation of the ADA, DPA and the Unruh Act have survived. Therefore, this
23 cause of action also survives.

24
25 **C. The Motions by Jacobs Engineering, Union Oil Company of**
26 **California, and RRM Design Group Motion for Summary Adjudication of the**
27 **Seventh, Eighth, and Ninth Causes of Action**

28 Jacobs Engineering, RRM Design, and Union Oil Company, who were involved in
the design and construction of the walkway, bring what are essentially identical motions for

1 summary adjudication of the seventh, eighth, and ninth causes of action. They contend that
2 any claims based upon the ADA can be brought only against defendants who own, lease, or
3 operate a place of public accommodation. They assert the undisputed facts demonstrate that
4 none of them owns, leases, or operates the walkway where the accident occurred.

5 Plaintiff's seventh cause of action includes an alleged violation of the ADA,
6 incorporating the language of 42 USC §12182 at paragraph 71, which provides as follows:

7 No individual shall be discriminated against on the basis of disability in the
8 full and equal enjoyment of the goods, services, facilities, privileges,
9 advantages, or accommodations of any place of public accommodation by any
10 person who owns, leases (or leases to), or operates a place of public
accommodation. (42 USC §12182(a).)

11 Plaintiff's eighth cause of action alleges a violation of the Disabled Person's Act
12 ("DPA"), which provides a private right of action against "any person or persons, firm or
13 corporation who denies or interferes with admittance to or enjoyment of the public facilities
14 as specified in Sections 54 and 54.1, or otherwise interferes with the rights of an individual
15 with a disability under Sections 54, 54.1 and 54.2. ..." (Civil Code §54.3.)⁴

16 Civil Code §54(c) of the DPA states that "a violation of the right of any individual
17 under the federal Americans with Disabilities Act of 1990 (Public Law 101-336) shall also
18 constitute a violation of this section." The eighth cause of action also relies on California
19 Building Code violations.

20 Plaintiff's ninth cause of action claims a violation of the Unruh Civil Rights Act.
21 Civil Code §51(f) of the Unruh Civil Rights Act states that "a violation of the right of any
22 individual under the federal Americans with Disabilities Act of 1990 (Public Law 101-336)
23 shall also constitute a violation of this section." Civil Code §52 (a) creates a private right of
24 action. The ninth cause of action also relies on California Building Code violations.

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28 ⁴ "Part 2.5 of division 1 of the Civil Code, currently consisting of sections 54 to 55.3, is commonly referred
to as the 'Disabled Persons Act,' although it has no official title." (*Munson v. Del Taco, Inc.* (2009) 46
Cal.4th 661, 674, fn. 8.)

1 The relationship among these three statutory provisions, i.e., the federal Americans
2 with Disability Act, the California Unruh Civil Rights Act, and the California DBA, was
3 discussed at length in *Rodriguez v. Barrita, Inc.*:

4 There are several avenues by which a plaintiff can prevail on a disability
5 discrimination claim under the CDPA or the Unruh Act. First, he or she can
6 prove that defendants violated California accessibility requirements. Public
7 accommodations constructed or altered after July 1, 1970, are subject to
8 California Health & Safety Code and Government Code requirements for
9 disabled access. *Moeller*, 816 F.Supp.2d at 847. Since 1981, Title 24 of the
10 California Code of Regulations, also known as the California Building Code,
11 has set forth accessibility requirements for public accommodations. *Id.* A
12 violation of Title 24 standards constitutes a violation of both the Unruh Act
13 and the CDPA. *See Arnold v. United Artists Theater Circuit, Inc.*, 866 F.Supp.
14 433, 439 (N.D.Cal.1994). To receive damages under the Unruh Act, however,
15 the plaintiff also “must plead and prove intentional discrimination in public
16 accommodations in violation of the terms of the Act.” *Munson*, 94 Cal.Rptr.3d
17 at 690, 208 P.3d at 627 (quotation marks and citation omitted). The CDPA has
18 no such requirement. *See* Cal. Civ.Code § 54.3. If a plaintiff prevails on a
19 damages claim under both statutes, double recovery is not permitted.
20 (*Munson*, 94 Cal.Rptr.3d 685, 208 P.3d at 632.)

21 A plaintiff can also prevail under these California statutes by proving that
22 defendants violated federal disability law. (*Moeller*, 816 F.Supp.2d at 848.)
23 Following passage of the ADA, the California legislature amended the CDPA
24 and the Unruh Act to provide that a violation of the ADA constitutes a
25 violation of both state statutes. (*See Id.*; Cal. Civ.Code §§ 51(f), 54(c).)
26 Because the ADA itself contains no intent requirement, the California
27 Supreme Court has held that where an Unruh Act claim is premised on a
28 violation of the ADA, the plaintiff need not demonstrate intentional
discrimination to recover. (*Munson*, 94 Cal.Rptr.3d 685, 208 P.3d 623.
Rodriguez v. Barrita, Inc. (N.D. Cal. 2014) 10 F.Supp.3d 1062, 1074–75,
reconsideration denied (N.D. Cal. 2014) 62 F.Supp.3d 936.)

 Plaintiff’s seventh cause of action alleges a violation of USC §12182, which provides
solely injunctive relief. As Plaintiff represents he seeks no remedies pursuant to the seventh
cause of action for an ADA violation (See Plaintiff’s Opposition at fn.1), the Court grants the
motion as to the seventh cause of action for violation of the ADA, and summarily adjudicates
that cause of action in favor of these moving Defendants.

1 Unlike the ADA's more-restricted remedies, both the DPA and the Unruh Act
2 provide for monetary damages irrespective of intent. (See Civil Code §§54.3(a) and §52(a).)⁵

3 The general intent of the legislation was expressed in an uncodified section:
4 "It is the intent of the Legislature in enacting this act to strengthen California
5 law in areas where it is weaker than the Americans with Disabilities Act of
6 1990 (Public Law 101-336) and to retain California law when it provides
7 more protection for individuals with disabilities than the Americans with
8 Disabilities Act of 1990." (Stats.1992, ch. 913, §1, p. 4282; *Munson v. Del*
9 *Taco, Inc.* (2009) 46 Cal.4th 661, 669.)

10 The critical issue with respect to the eighth and ninth causes of action is whether
11 Plaintiff is barred from bringing state claims based upon ADA violations in light of the
12 language of 42 USC 12182 (a), which requires that violations be committed by a person
13 who owns, leases (or leases to), or operates a place of public accommodation. Plaintiff's
14 position is that, where an ADA access standard is violated, the action can be brought against
15 a broader class of persons described in Civil Code §§52(a) and 54.3(a).

16 In *Lonberg v. Sanborn Theaters, Inc.* (9th Cir. 2001) 259 F.3d 1029, 1036, 271 F.3d
17 953, plaintiffs sued the architect under 42 USC §12183(a)(1), alleging a "failure to design
18 and construct" Market Place in a manner "readily accessible" to their wheelchairs. The court
19 concluded that the defendant architect could not be held liable for an ADA violation because
20 the architect did not own, lease, or operate the subject premises:

21 We therefore hold that only an owner, lessee, lessor, or operator of a
22 noncompliant public accommodation can be liable under Title III of the ADA
23 for the "design and construct" discrimination described in § 12183(a).
24 Because it is conceded that STK is not such a person, STK cannot be held
25 liable for the "failure to design and construct" Market Place in a manner
26 compliant with the ADA. (*Lonberg v. Sanborn Theaters Inc.* (9th Cir. 2001)
27 259 F.3d 1029, 1036, *as amended on denial of reh'g and reh'g en banc* (9th
28 Cir. 2001) 271 F.3d 953.)

⁵ With respect to the Unruh Act, a plaintiff who establishes a violation of the ADA, therefore, need not prove intentional discrimination in order to obtain damages under section 52. (*Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661, 665.)

1 *Lonberg* dealt exclusively with an ADA violation. The fact that the ADA provided
2 only injunctive relief was significant to the court's reasoning in that injunctive relief would
3 be ineffective against defendants who do not own, lease or operate buildings. (*Lonberg*, 259
4 F.3d 1029, 1036, *as amended on denial of reh'g and reh'g en banc* (9th Cir. 2001) 271 F.3d
5 953.)

6 Whether the more restrictive provisions of the ADA apply (i.e., the limitation as to
7 owners, lessors or operators) to potentially responsible parties under the Unruh Civil Rights
8 Act and the Disabled Person's Act is less clear. Indeed, the parties recognize that there is no
9 controlling precedent.

10 Jacobs, RRM, and Union Oil rely upon *Lemmons v. Ace Hardware Corporation*
11 (N.D. Cal., July 3, 2014, No. 12-CV-03936-JST) 2014 WL 3107842 to support the
12 contention that the ADA limitation of responsible parties pertains equally to Unruh Act and
13 DPA claims. Plaintiff counters that, for purposes of state law, the ADA violation arises from
14 a failure to meet an access standard only.

15 In *Lemmons*, plaintiff brought a claim based upon ADA violations along with Unruh
16 Act violations. Plaintiff was able to demonstrate viable claims against all defendants except
17 the franchisor, ACE Hardware. The court concluded that plaintiff was unable to establish
18 that ACE was an "operator" for purposes of liability under the ADA.

19 Lemmons points to no evidence to show that Ace retained the authority under
20 the agreement to dictate the physical layout of the store, or that otherwise
21 participated in the alleged acts of discrimination against Plaintiff. In the
22 absence of such evidence, the Court cannot conclude that Ace had control
23 over the store such that it could ensure nondiscrimination against the disabled.
(*Lemmons v. Ace Hardware Corporation* (N.D. Cal., July 3, 2014, No. 12-
CV-03936-JST) 2014 WL 3107842, at *7.)

24 Without an extended discussion of the potentially-responsible parties language in
25 Civil Code §52(a), the court granted Ace's motion for summary judgment as to Lemmon's
26 Unruh Act claim. (*Lemmons v. Ace Hardware Corporation* (N.D. Cal., July 3, 2014, No. 12-
27 CV-03936-JST) 2014 WL 3107842, at *7.)

28 ///

1 Other authority is more abstract. In *Hodges v. El Torito Restaurants, Inc.* (N.D. Cal.,
2 Feb. 23, 1998, No. C-96-2242 VRW) 1998 WL 95398, the court discussed the public policy
3 considerations in determining whether plaintiff could be a prevailing party for purposes of an
4 attorney fee award after a settlement:

5 If plaintiffs had to sue the now defunct El Caballo for violations that allegedly
6 first appeared while El Caballo occupied the building, it is unlikely that
7 plaintiffs could obtain money damages. Furthermore, because El Caballo no
8 longer has control over the building, plaintiffs could not achieve the ultimate
9 goal of the various state laws at issue—an accessible restaurant. It is therefore
10 clear that the best way to effectuate the goals of California's accessibility laws
11 is to hold the current owners of buildings liable for existing violations.
(*Hodges v. El Torito Restaurants, Inc.* (N.D. Cal., Feb. 23, 1998, No. C-96-
2242 VRW) 1998 WL 95398, at *4.)

12 In *Rodriguez v. Barrita, Inc.* (N.D. Cal. 2014) 10 F.Supp.3d 1062, 1074,
13 *reconsideration denied* (N.D. Cal. 2014) 62 F.Supp.3d 936, a case involving wheelchair
14 access to a restaurant, the court discusses the viability of state claims against an owner of the
15 property. The cited language refers to ADA standards. *Molski v. M.J. Cable, Inc.* (9th Cir.
16 2007) 481 F.3d 724, also cited by Defendant, involved a claim against the owner of the
17 restaurant.

18 While the issue is not free from doubt, the Court concludes that Civil Code §§51(f)
19 and 54(c), which make actionable the “violation of a right of an individual under the federal
20 Americans with Disabilities Act,” require incorporation of the full definition embodied in
21 USC §12182(a). Had the legislature intended to make violations of ADA access standards
22 actionable under state law irrespective of ownership or control, it could have easily and
23 specifically done so by specifically referencing violations of ADA *standards*, rather than
24 *rights*.⁶ A discriminatory act by a person “who owns, leases (or leases to), or operates a place
25 of public accommodation” is therefore necessary to constitute an ADA violation for purposes
26 of the Unruh Act and DPA.

27
28 ⁶ See Plaintiff's reference to ADAAG standards. The standards require that removal of barriers be readily
achievable, implying that a party with authority over the property is the party able to provide an effective
remedy.

1 Notwithstanding, the eighth and ninth causes of action under the Unruh Act and DPA
2 include claims based upon violations of the State Building Code under Title 24 of the
3 California Code of Regulations. A violation of the standards in Title 24 constitutes a
4 violation of both the Unruh Act and the DPA. (*Moeller v. Taco Bell Corp.* (N.D. Cal. 2011)
5 816 F.Supp.2d 831, 848.)

6 In *Belio v. Panorama Optics, Inc.* (1995) 33 Cal.App.4th 1096, 1103, *as modified*
7 (*Apr. 25, 1995*), the complaint alleged a single cause of action for dissolution of a
8 corporation based upon Corporations Code §1800(b)(3) (requiring a deadlock of shareholders
9 to support dissolution) and Corporations Code §1800(b)(5) (authorizing involuntary
10 dissolution of certain corporations for the protection of complaining shareholders).

11 In granting the motion for summary adjudication on the basis that the cause of action
12 under subdivision (b)(3) had merit, the trial court did not address the alternative basis for
13 dissolution under subdivision (b)(5). The Court of Appeal reversed, holding that that
14 summary adjudication action was inappropriate because it did not dispose of an entire cause
15 of action.

16 The alleged discriminatory conduct, whether based upon an ADA violation or a
17 violation of standards in the State Building Code, results in an invasion of the same primary
18 right, albeit through avenues. Because the Second Complaint pleads disability claims based
19 upon violations *other than* ADA violations, the motions by Jacobs, RRM, and Union Oil do
20 not entirely dispose of the eighth and ninth causes of action.

21 Recognizing that proof of ADA violations or state law claims based upon ADA
22 violations may not be admissible at trial, and that a higher standard of proof may exist for
23 violations predicated on State Building Codes, the Court denies the motions of Jacobs
24 Engineering, RRM Design, and Union Oil Company, for summary adjudication of the
25 seventh, eighth, and ninth causes of action.⁷

26
27 ⁷ Port San Luis filed an opposition to the motion contending that granting the motion would preclude the Port's
28 indemnity claims against these Defendants. *Lonberg* expressed no view on whether the architect could be liable
to the owner under tort and contract law for designing Market Place in a manner that did not comply with
the ADA. (See *Lonberg v. Sanborn Theaters Inc.* (9th Cir. 2001) 259 F.3d 1029, 1036, *as amended on*
denial of reh'g and reh'g en banc (9th Cir. 2001) 271 F.3d 953.) As in *Lonberg*, the Court does not intimate any

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III. CONCLUSION

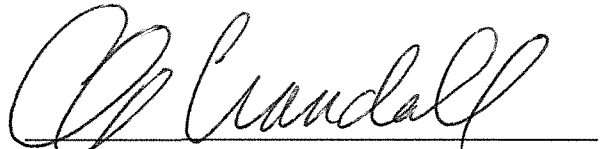
The Court denies Port San Luis' motion for summary judgment and the motions of Jacobs Engineering, RRM Design and Union Oil Company for summary adjudication of the eighth and ninth causes of action.

The Court grants the motions of Jacobs Engineering, RRM Design, and Union Oil Company for summary adjudication of the seventh cause of action.

With the help of the mediator, the Court hopes the parties will re-examine their positions and liabilities in light of, among other things, the potentially-viable immunities and defenses that have been raised, as well as the fundamental factual conflicts that will need to be resolved by the jury. By doing so, the parties may yet be able to resolve this problematical case.

IT IS SO ORDERED.

Dated: September 12, 2016


CHARLES S. CRANDALL
Judge of the Superior Court

view on whether Jacobs Engineering, RRM Design, and Union Oil Company can be liable to the Port San Luis Harbor District under tort and contract law for designing of the walkway in a manner that does not comply with the ADA

**STATE OF CALIFORNIA, COUNTY OF SAN LUIS OBISPO
CERTIFICATE OF MAILING**

Warren Van Ness Vs. Port San Luis Harbor District	CV130369
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I, Jennifer Novick, Deputy Clerk of the Superior Court of the State of California, County of San Luis Obispo, do hereby certify that I am over the age of 18 and not a party to this action. Under penalty of perjury, I hereby certify that on **09/12/2016** I deposited in the United States mail at

San Luis Obispo, California, first class postage prepaid, in a sealed envelope, a copy of the attached **Ruling and Order Denying in Part, and Granting In Part, Defendants' Motions for Summary Adjudication**. The foregoing document was addressed to each of the above parties.

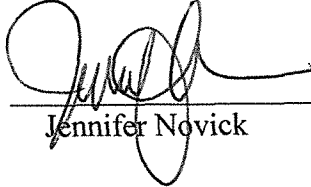
OR

If counsel has a pickup box in the Courthouse a copy was placed in said pickup box this date.

Dated: 9/12/2016

Michael Powell, Clerk of the Court

By:

A handwritten signature in black ink, appearing to read 'Jennifer Novick', written over a horizontal line.

Deputy Clerk

Jennifer Novick